United Nations High Commissioner for Refugees (UNHCR)

Committee Overview

The Office of the High Commissioner for Refugees (UNHCR) is the primary United Nations (UN) body that works to serve refugees, asylum seekers, stateless persons, and internally displaced people (IDPs)[1]. Although it works with other agencies that assist displaced people, it is distinct from other UN bodies such as the International Organization for Migration (IOM), which assists migrants,[2] and the United Nations Relief and Works Agency for Palestine Refugees in the Near East (UNRWA),[3] which assists Palestinian Refugees. The UNHCR was established in 1950 in the aftermath of World War II to assist the millions of Europeans that had been displaced by the conflict. Since then, the UNHCR's mandate has expanded to include refugees from around the world.[4] In 2003, the UN General Assembly (GA) extended the mandate of the UNHCR indefinitely.[5] According to its founding document, *The Statute of the High Commissioner for Refugees*, the core mandate of the UNHCR is to serve refugees, asylum seekers, stateless persons, and returnees.[6] Since then, the GA and Economic and Social Council (ECOSOC) have further expanded the mandate of the UNHCR to include IDPs and certain other groups not specifically included in the mandate when called upon.[7]

The definition of **refugee** was originally given by the *1951 Convention relating to the Status of Refugees*. It states that a refugee is someone who, due to "well-founded fear of being persecuted for reasons of race, religion, nationality, membership of a particular social group, or political opinion,"[8] has left their country of origin and cannot rely on the country for the protections that they are due as a citizen. The *1967 Protocol relating to the Status of Refugees* expanded this existing definition to include those displaced by conflicts occurring after 1951.[9] According to these legal documents, someone who is granted the status of refugee is guaranteed certain protections from their host country. These include the right to work, the right to education, and other basic human rights. Any nation that has signed the *1951 Convention* or the *1967 Protocol* is obligated to provide these protections to a person that is given the status of a refugee. [10] In addition, it is important to note that one of the most significant parts of the *1951 Convention* is

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[1] UNHCR, *About Us*, 2020.
[2] IOM, *About IOM*, 2020.
[3] UNRWA, *Who We Are*, 2020.
[4] UNHCR, *History of UNHCR*, 2020.
[5] UN General Assembly, *Implementing actions proposed by UNHCR to strengthen the capacity of his Office to carry out its mandate* (A/RES/58/153), 2003.
[6] UNHCR, *Statute of the High Commissioner for Refugees*, 2010.
[7] UNHCR Division of Internal Protection, *Note on the Mandate of the High Commissioner for Refugees and his Office*, 2013.
[8] UNHCR, *Convention and Protocol relating to the Status of Refugees*, 2010.
[9] Ibid.
[10] Ibid.

the concept of **non-refoulment**, which means that refugees cannot be forced to return to their countries of origin "where his life or freedom would be threatened on account of his race, religion, nationality, membership of a particular social group or political opinion."[11] An **asylum-seeker** is someone whose request for refugee status (also known as asylum) is yet to be processed. Each year, approximately 1 million people request refugee status.[12] A **stateless person** is someone who is not considered a citizen of any nation, as defined by the *1954 Convention relating to the Status of Stateless Persons*.[13] A **returnee** is a former refugee who has returned to their country of origin.[14] An **internally displaced person**, or **IDP**, is some who has left their habitual place of residence but has not left their country of origin. IDPs do not have any protections under international law, making them some of the most vulnerable displaced people. According to the Internal Displacement Monitoring Center (IDMC), at the end of 2018, more than 40 million people were internally displaced due to armed conflict.[15]

The UNHCR reports annually to the GA and ECOSOC, which are its two governing bodies. The High Commissioner is appointed by the GA, and the UNHCR's budget is approved by the UNHCR Executive Committee. The UNHCR works globally, with more than 16,000 personnel operating in 134 countries.[16] Its proposed budget for 2020 is $8.636 billion to respond to the needs of 82.5 million "people of concern."[17] However, the UNHCR faces a significant funding gap because its budget is made up almost entirely from voluntary contributions by Member States and the European Union.[18] The UNHCR uses this budget to assist with resettlement, voluntary repatriation, and integration into host societies of refugees. In addition, their work includes provision of critical emergency assistance, including shelter, water, sanitation, and food, during large displacement crises.[19] The UNHCR also works with governments, intergovernmental organizations, and civil society organizations (CSOs) to advocate for the needs of refugees. This work often includes giving legal and policy advice to governments and providing them with technical support. In addition, the UNHCR plays an important role in the Cluster Approach, led by the Inter-Agency Standing Committee (IASC). It serves as a leader of the Global Protection Cluster, which works to ensure that the human rights are protected during times of crisis[20]. It is also a leader of the Global Shelter Cluster. In this role, the UNHCR provides shelter, settlement, and shelter-related non-food items (NFIs) during humanitarian crises that lead to internal displacement.

The number of refugees and displaced people grown rapidly in the last few decades. As of June 2019, there are 70.8 million forcibly displaced people worldwide. This is the highest level of displacement that has ever been recorded.[21] The UNHCR has a track record of serving the

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[11] Ibid.
[12] UNHCR, *Asylum-Seekers*, 2020.
[13] UNHCR, *Statelessness*, 2020.
[14] UNHCR, *Returnees*, 2020.
[15] UNCHR, *Internally Displaced People*, 2020.
[16] UNHCR, *Governance and Oversight*, 2020.
[17] UNHCR, *UNHCR Global Appeal 2020-2021: Overview | Financial Requirements*, 2019.
[18] Ibid.
[19] UNHCR, *What We Do*, 2020.
[20] Global Protection Cluster, *Who We Are*, 2020.
[21] UNHCR, *Figures at a Glance*, 2020.

forcibly displaced, and, as the numbers continue to rise, it will have to increase its activity to ensure that the needs of these people are met.

Displacement due to Climate Change

Background

Global climate change has and will continue to threaten the livelihoods of countless people around the world. The 2016 *Paris Agreement*, which was signed by all Member States, aims to keep global warming below 2 degrees Celsius.[22] However, the current rate of global warming is outpacing almost all scientific forecasts.[23] Accelerating climate change leads to increasingly frequent and more severe natural disasters. This, along with leading directly to displacement, disrupts crops growth and can harm food supplies. This scarcity can also lead to conflict over resources.[24] For all these reasons and more, current estimates suggest that up to 1 billion people may be displaced by 2050 due to climate change.[25] In 2015, the GA passed *Resolution 70/1* "Transforming our World: the 2030 Agenda." This comprehensive agenda emphasizes the need for a cohesive policy response to migration.[26]

To address the issue of large-scale movements of displaced people, the GA passed the *New York Declaration for Refugees and Migrants* in 2016. It expressed Member States' commitment to support displaced people as well as the nations that host them. It also outlined the key elements of a Comprehensive Refugee Response Framework (CRRF) as well as an agreement to adopt a *Global Compact on Refugees* and a *Global Compact for Safe, Orderly, and Regular Migration*.[27] The CRRF outlines the ways to address a large migration event in a wholistic and inclusive manner. It has 4 key elements: (1) easing the pressure on host countries and communities, (2) enhancing refugee self-reliance, (3) expanding third-country solutions, and (4) supporting conditions in country of origin for return in safety and dignity.[28] Since the adoption of the CRRF, the UNHCR has seen a marked increase in support for communities hosting a large number of refugees.[29] In 2018, the UNHCR published the *Global Compact on Refugees*, developed over the course of several thematic consultations and formal discussions, as a practical application of the CRRF.[30] These resolutions and frameworks form some of the basis for the UNHCR's response to mass displacement due to climate change.

Addressing the Legal Status of Environmental Migrants

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[22] United Nations Framework Convention on Climate Change, *The Paris Agreement*, 2020.
[23] UNHCR, *Climate Change and Disaster Displacement*, 2020.
[24] Ibid.
[25] Brown, Oli, IOM, *Migration and Climate Change*, 2008.
[26] UN General Assembly, Transforming our World: the 2030 Agenda for Sustainable Development (A/RES/70/1), 2015.
[27] UN General Assembly, New York Declaration for Refugees and Migrants (A/71/1), 2016.
[28] UNHCR, *New York Declaration for Refugees and Migrants: Comprehensive Refugee Response Framework*, 2020.
[29] UNHCR, *The Global Compact on Refugees: UNHCR Quick Guide*, 2018
[30] UN, General Assembly, Global Compact for Refugees (A/73/12), 2018.

In the *1951 Convention concerning the Status of Refugees*, there are no protections afforded to people who are displaced due to environmental causes, as they do not fall under the outlined definition of refugee.[31] In addition, many people that are displaced because of climate-change related reasons often do not leave their nation of habitual residence, so they are classified as IDPs. Both classes of people are not protected by international law. [32] However, there have been some regional attempts to address this policy gap. The *Convention Governing the Specific Aspects of Refugee Problems in Africa*, also known as the *OAU Convention* was a regional attempt to expand the definition of refugee provided by the *1951 Refugee Convention* to include those "fleeing environmental catastrophes."[33] This document was ratified by 44 African nations, and was the first major document to acknowledge the needs of environmental migrants.[34] Following the *OAU Convention*, the *Cartagena Declaration on Refugees* (1984) was adopted by 10 Latin American States. This document emphasized the protection of refugees due to natural disasters.[35] To address the issue at a state level, a coalition of Latin American states adopted the *Brazil Declaration and Plan of Action*. It calls for the implementation of strengthened asylum processes, the establishment of a regional resettlement program, and greater international and regional efforts to assist the internally displaced.[36] In 2009, the African Union (AU) passed the *African Union Convention for the Protection and Assistance of Internally Displaced Person in Africa*, also known as the *Kampala Convention*. This document recognizes provides protections to those who have been internally displaced by armed conflict and natural disasters.[37]

Future documents that address the issue of people forcibly displaced in the context of disasters and climate change will need to consider the idea of "**nexus dynamics**".[38] As seen with the Syrian Refugee Crisis, climate change can exacerbate existing conflicts. As resources become scarcer due to factors like drought-related famine, armed conflict and violence can arise.[39] In 2018, the UNHCR published *In Harm's Way: International protection in the context of nexus dynamics between conflict or violence and disaster or climate change*.[40] This study examined the factors behind human movements in various regions around the world. It also outlines recommendations for international law to protect "cross-border migrants in the context of nexus dynamics."[41]

Strengthening Host Countries' Capabilities

The UNHCR works to address climate change and disaster displacement in 4 major areas: (1) policy guidance and facilitation of the sharing of best practices to ensure the rights of those

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[31] UNHCR, *Convention and Protocol relating to the Status of Refugees*, 2010.
[32] UNHCR, *Climate Change and Disaster Displacement*, 2020.
[33] UNHCR, *OAU Convention Governing Specific Aspects of the Refugee Problem in Africa*, 1969.
[34] UNHCR, *Climate Change and Disaster Displacement*, 2020.
[35] Ibid.
[36] UNHCR, *The Brazil Declaration*, 2014.
[37] African Union, *African Union Convention for the Protection and Assistance of Internally Displaced Person in Africa (Kampala Convention)*, 2009.
[38] UNHCR, *Climate Change and Disaster Displacement*, 2020.
[39] Ibid.
[40] Ibid.
[41] Weerasinghe, Sanjula, UNHCR Legal and Protection Policy Research Series, *In Harm's Way: International protection in the context of nexus dynamics between conflict or violence and disaster or climate change*, 2018.

displaced are protected, (2) the promotion of policy coherence to ensure a wholistic and systems-wide approach to issues of disaster displacement, (3) research to determine best practices and most effective policies, and (4) field-based activities to avoid, minimize, and address cross-border and disaster displacement due to climate change.[42]

In 2015, the 21st Conference of the Parties (COP21) to the UN Framework Convention on Climate Change (UNFCCC) requested the establishment of a Task Force on Displacement by the Executive Committee of the Warsaw International Mechanism (WIM) for Loss and Damage associated with Climate Change Impacts.[43] This Task Force was charged with several tasks including mapping of data sources and methodologies, generating an inventory of existing policy, and coordination of processes within the UN system. The task forces used this information to identify policy and research gaps, which were published used to create recommendations adopted by the COP in its 24th session.[44] In August of 2018, this WIM Task Force on Displacement also published *Mapping of Existing International and Regional Guidance and Tools on Averting, Minimizing, Addressing and Facilitating Durable Solutions to Displacement Related to the Adverse Impacts of Climate Change*. In its introduction, the toolkit defines several concepts critical to addressing the issue. It also outlines strategies to avert displacement due to climate change, including planned relocation and preparedness. Each section also includes regional guidance tools to address their specific needs.[45]

In March of 2014, the UNHCR and other partners organized an expert consultation on **planned relocation**. Following its conclusion, *Planned Relocation, Disasters and Climate Change: Consolidating Good Practices and Preparing for the Future* was published as a summary of the findings of the conference. As noted by this report, planned relocation can occur both before (preemptively) or after (remedially) a disaster strikes. Because of this, planned relocation can be considered a form of **disaster risk reduction** or climate change adaptation, depending on the context. However, planned relocation, because of its disruptive effects on a community, should always be considered a last resort unless communities identify it as a potential solution for themselves. Generally, planned relocation occurs within the borders of a state and serves as a measure to avoid international displacement.[46] Regarding this issue, the UNHCR also developed, in collaboration with Georgetown University and other partners, the document *Guidance on Protecting People from Disasters and Environmental Change through Planned Relocation*.[47] This document outlines the legal and policy framework around the issue of planned

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[42] UNHCR, *Climate Change and Disaster Displacement*, 2020.
[43] WIM, UNHCR, *Mapping of Existing International and Regional Guidance and Tools on Averting, Minimizing, Addressing and Facilitating Durable Solutions to Displacement Related to the Adverse Impacts of Climate Change*, 2018.
[44] UNFCCC, *Task Force on Displacement*, 2020.
[45] WIM, UNHCR, *Mapping of Existing International and Regional Guidance and Tools on Averting, Minimizing, Addressing and Facilitating Durable Solutions to Displacement Related to the Adverse Impacts of Climate Change*, 2018.
[46] UNHCR, *Planned Relocation, Disasters and Climate Change: Consolidating Good Practices and Preparing for the Future*, 2014.
[47] UNHCR, *Climate Change and Disaster Displacement*, 2020.

relocation and also addresses the mechanisms by which this process can be undertaken while preserving the human rights of those involved.[48]

The UNHCR also works to increase states' ability to minimize displacement through its work in the Advisory Group on Human Mobility and Climate Change.[49] Along with civil society and UN partners, like the IOM and United Nations Development Program (UNDP), the UNHCR consults with states to provide technical support to individuals, households, and communities to implement both adaptation and mitigation strategies. These include providing guidance on safe evacuation plans, the protection of at-risk and vulnerable populations, and risk mitigations solutions for migrants as well as their host communities.[50]

Bolstering Disaster Relief Assistance

According to the IDMC *Global Report on Internal Displacement* (2018), there were more than 30 million new displacements associated with conflict and natural disaster in 2017, which amounts to 30,000 people per day. Nearly two thirds of this displacements were due to weather-related and geophysical natural disasters, demonstrating the urgent and growing need to increase assistance to communities impacted by these phenomena.[51] The UNHCR plays a major role in emergency aid and relief for disasters around the world.[52] Since the advent of their 2017 *Policy on Emergency Preparedness and Response*, the UNHCR can have an operation underway in less than 72 hours.[53] This policy, which takes into account the CRRF, streamlines internal procedures to increase the efficiency of mobilization of resources. This policy emphasizes early engagement and preparedness with a field-oriented approach. This policy also focuses on integration of multi-stakeholder partnerships and simplification of procedures, which have led to increased timeliness of response.[54]

The mechanism for coordinating non-refugee emergencies is the Cluster Approach. The UNHCR plays a vital role in this mechanism by serving as a leader for both the Global Protection Cluster and the Shelter Global Cluster.[55] For refugee crises, the refugee coordination model (RCM) is the mechanism by which resources are organized. For mixed crises, the *UNHCR-OCHA Joint Note on Mixed Situations: coordination in practice* (2014) provides a framework on how to address those complex situations.[56] The RCM is distinct from the Cluster Approach, and clusters are not activated during refugee-related crises.[57] The UNHCR has always coordinated the response for refugee crises; however, the RCM was only formalized in 2013. The GA *Resolutions 69/152* and *70/135* confirmed the UNHCR's mandate to lead these responses. The RCM is used in all

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[48] UNHCR, *Guidance on Protecting People from Disasters and Environmental Change through Planned Relocation*, 2015.
[49] UNHCR, *Climate Change and Disaster Displacement*, 2020.
[50] Paris COP21, Advisory Group on Climate Change and Human Mobility, *Climate Change and Human Mobility Solution Agenda- Resilience*, 2015.
[51] IDMC, *Global Report on Internal Displacement*, 2018.
[52] UNHCR, *Emergencies*, 2020.
[53] UNHCR, Emergencies, 2020; UNHCR, *Policy on Emergency Preparedness and Response*, 2017.
[54] Ibid.
[55] UNHCR Emergency Handbook, *Cluster Approach (IASC): Overview*, 2020.
[56] UNHCR Emergency Handbook, *Refugee Coordination Model (RCM)*, 2020.
[57] UNHCR Emergency Handbook, *Cluster Approach (IASC): Overview*, 2020.

refugee situations, which includes both new and protracted emergencies. It is important to remember that the governments bear the ultimate responsibility of protecting refugees, and the RCM works in conjunction with existing national policies. The main functions of the RCM include preparedness, advocacy, strengthening national capacity, resource mobilization, and many other functions. It involves both field-based and policy-oriented actions.[58]

The UNHCR has prioritized climate change-related displacement in is policy for the upcoming years, as described in *2017-2021 Strategic Directions.* This document outlines 5 key areas of action: (1) protection, (2) responding in emergencies and beyond, (3) promoting inclusion and self-reliance, (4) the empowerment of the people UNHCR serves, and (5) the pursuit of solutions.[59] Regarding responses to emergencies, the document describes the importance of engaging with inter-agency and national partners as well as the need to ensure the protection of the most vulnerable. It also describes the importance of early preparedness integrated with a protection and solutions-oriented outlook, especially in the context of the CRRF and the *2030 Agenda*.

Conclusion

As the crisis of climate change continues to accelerate the rate of displacement around the world, the UNHCR will have to play a critical role in providing for the needs of these people. In addition, extreme weather conditions, as well as other consequences of climate change, increase the vulnerability of already displaced people. Although there have been several regional efforts to increase legal protections for those displaced due to climate change, this group still lacks an international and universally accepted legal status. Due to this increased vulnerability, the UNHCR made addressing forced displacement due to climate change a main focal point in its *2017-2021 Strategic Directions*. It also has worked to address the use through its role in the Cluster Approach, the RCM, WIM Task Force on Displacement, and other initiatives.

Further Research

Delegates should consider both the long-term and sudden onset factors that lead to displacement due to climate change. What can the UNHCR and the international community do to mitigate displacement and protect the human rights of those who are displaced. In particular, what are the different protections that are afforded to IDPs versus cross-border migrants? Delegates should also consider how the UNHCR can address the issue of nexus dynamics, in which conflict, climate change, and displacement all interact. How can the UNHCR address forced migration in the context of the *2030 Agenda* and the Sustainable Development Goals?

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[58] UNHCR Emergency Handbook, *Refugee Coordination Model (RCM)*, 2020.
[59] Platform on Disaster Displacement, *UNHCR's Strategic Direction 2017-2021*, 2020.